

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1686
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 41-608, Arizona Revised Statutes, is amended
3 to read:

4 41-608. Veterans' donations fund; transfer; grants

5 A. The veterans' donations fund is established consisting of
6 monies, gifts and contributions donated to the department and monies
7 deposited pursuant to sections 28-2414, 28-2428, 28-2431, 28-2447,
8 28-2454, 28-2470.10, 28-2473, 28-2474, 28-2475, 28-2476 and 43-620. The
9 department shall administer the fund. Monies in the fund are continuously
10 appropriated. The monies in the fund are exempt from the provisions of
11 section 35-190 relating to lapsing of appropriations. The department
12 shall annually transfer fifteen percent of all revenues received by the
13 department that are deposited in the veterans' donations fund pursuant to
14 this section to the subaccount established pursuant to section 41-608.01
15 in the state homes for veterans trust fund. The department shall adopt
16 rules or policies for grants of less than \$5,000 that encourage as much
17 competition as practicable.

18 B. The director or the director's designee may solicit and receive
19 donations, including in-kind donations, from the public for veterans. The
20 director shall deposit, pursuant to sections 35-146 and 35-147, the
21 monetary donations in the veterans' donations fund. Monies in the fund
22 are subject to state auditing procedures. Except for monies deposited
23 pursuant to sections 28-2431 and 28-2447, the donations may be used for
24 the benefit of the veterans within this state as grants, subject to
25 chapter 24 of this title, if applicable.

26 C. The director shall establish a separate subaccount in the
27 veterans' donations fund for the deposit of monies received pursuant to
28 section 28-2431, subsection C. The monies in the subaccount shall be used

~~1 for the construction and maintenance of the enduring freedom memorial
2 authorized pursuant to section 41-1363 for placement in THE Wesley Bolin
3 AND CHARLIE KIRK FREEDOM Plaza.~~

~~4 D. The director shall establish a separate subaccount in the
5 veterans' donations fund for the deposit of monies received pursuant to
6 section 28-2447, subsection F. The monies in the subaccount shall be used
7 for the benefit of women veterans in this state, including providing
8 shelter to homeless women veterans as grants, subject to chapter 24 of
9 this title, if applicable.~~

~~10 E. The director shall establish a separate subaccount in the
11 veterans' donations fund for the deposit of monies received pursuant to
12 section 28-2454, subsection C. The first \$32,000 in the subaccount shall
13 be reimbursed to the person that provides the \$32,000 pursuant to section
14 28-2454, subsection A. The director shall annually allocate monies from
15 the subaccount to a foundation that is qualified under section 501(c)(3)
16 of the United States internal revenue code for federal income tax purposes
17 and that is the nation's oldest and largest provider of need-based
18 scholarships to children of United States military members. The
19 foundation must:~~

~~20 1. Have been in existence for at least fifty-two years.~~

~~21 2. Have provided more than thirty-three thousand scholarships that
22 are valued at almost \$90,000,000.~~

~~23 3. Have a mission that includes honoring marines and educating
24 their children.~~

~~25 4. Award scholarship monies to children of marines and navy
26 corpsmen who were killed or wounded in combat or who have demonstrated
27 financial need.~~

~~28 F. The director shall establish a separate subaccount in the
29 veterans' donations fund for the deposit of monies received pursuant to
30 section 28-2470.10, subsection C. The first \$32,000 in the subaccount
31 shall be reimbursed to the person that provides the \$32,000 pursuant to
32 section 28-2470.10, subsection A. The director shall annually allocate
33 monies from the subaccount to a foundation that is qualified under section
34 501(c)(3) of the United States internal revenue code for federal income
35 tax purposes. The foundation must:~~

~~36 1. Have been in existence for at least twenty years.~~

~~37 2. Have a mission that includes providing college scholarships to:~~

~~38 (a) The sons and daughters of those who have served the United
39 States honorably as soldiers in the United States army.~~

~~40 (b) The spouses of enlisted soldiers on active duty in the United
41 States army.~~

~~42 3. Envision increasing its fundraising and visibility to encourage
43 more applicants to apply for scholarships and to provide larger
44 scholarships to an increasing number of deserving applicants to both:~~

~~45 (a) Reward army families for the sacrifices that army soldiers make
46 every day to serve their nation.~~

1 ~~(b) Help the spouses and children of army soldiers become leaders~~
2 ~~in society.~~
3 ~~4. Award scholarship monies to:~~
4 ~~(a) Children of former United States army members who were killed~~
5 ~~while serving in the United States army or who received an honorable~~
6 ~~discharge or medical discharge.~~
7 ~~(b) Children of United States army members in good standing serving~~
8 ~~in regular active duty, active duty reserve or active duty national guard.~~
9 ~~(c) Spouses of United States army members in good standing serving~~
10 ~~in regular active duty, active duty reserve or active duty national guard.~~
11 ~~G. The director shall inventory and account for the use of any~~
12 ~~tangible personal property donated to the fund.~~
13 ~~H. The department may use up to \$150,000 from the veterans'~~
14 ~~donations fund each fiscal year to administer this section. In addition~~
15 ~~to any other full-time equivalent positions authorized by law, the~~
16 ~~department is authorized two full-time equivalent positions to administer~~
17 ~~this section.~~
18 ~~I. On notice from the director, the state treasurer shall invest~~
19 ~~and divest monies in the fund as provided by section 35-313, and monies~~
20 ~~earned from investment shall be credited to the fund.>>~~
21 ~~<<Sec. 2. Section 41-1304.05, Arizona Revised Statutes, is amended~~
22 ~~to read:~~
23 ~~41-1304.05. Architect of the capitol; state capitol building~~
24 ~~areas and other facilities; jurisdiction;~~
25 ~~maintenance; definition~~
26 ~~A. The office of the architect of the capitol is established in the~~
27 ~~Arizona legislative council. The director of the Arizona legislative~~
28 ~~council shall select an architect of the capitol and other personnel~~
29 ~~necessary to develop and maintain a master plan for the state capitol~~
30 ~~complex. The architect of the capitol appointed by the director of the~~
31 ~~Arizona legislative council must have master planning experience and~~
32 ~~experience working with the state historic preservation office and~~
33 ~~historic government buildings. The architect of the capitol shall submit~~
34 ~~the master plan to the members of the Arizona legislative council for~~
35 ~~approval at least once during each regular session of the legislature.~~
36 ~~B. The Arizona legislative council is responsible for the~~
37 ~~allocation of space, operation, alteration, renovation and control of the~~
38 ~~following:~~
39 ~~1. The original 1898 statehouse area of the state capitol building~~
40 ~~known as the state capitol museum.~~
41 ~~2. The 1919 wing and the 1938 justice addition of the state capitol~~
42 ~~building known jointly as the legislative services wing.~~
43 ~~3. Any other facility acquired for legislative use and placed under~~
44 ~~legislative council jurisdiction and the grounds adjacent to it.~~
45 ~~4. Except as provided in subsection D, paragraph 2 of this section,~~
46 ~~the Wesley Bolin memorial AND CHARLIE KIRK FREEDOM Plaza east of the state~~
47 ~~capitol building.~~

1 ~~5. Except as provided in subsections C and D of this section, the~~
2 ~~grounds adjacent to the state capitol museum, the legislative services~~
3 ~~wing, the house of representatives wing and the senate wing and comprising~~
4 ~~the area east of the state capitol executive tower with a northern~~
5 ~~boundary of West Adams street, an eastern boundary of Seventeenth avenue~~
6 ~~and a southern boundary of West Jefferson street in Phoenix, Arizona.~~

7 ~~6. The speaker of the house of representatives is responsible for~~
8 ~~the following:~~

9 ~~1. The allocation of space, operation, alteration, renovation and~~
10 ~~control of the house of representatives wing of the state capitol~~
11 ~~building.~~

12 ~~2. The allocation of space and control of the parking lot area~~
13 ~~adjacent to the house of representatives wing, the parking lot area with a~~
14 ~~southern boundary of West Adams street, an eastern boundary of seventeenth~~
15 ~~avenue and a northern boundary of West Monroe street in Phoenix, Arizona~~
16 ~~and comprised of COMPRISING one hundred five parking spaces and the~~
17 ~~southeast portion of the parking lot area with a southern boundary of West~~
18 ~~Monroe street and an eastern boundary of Seventeenth avenue in Phoenix,~~
19 ~~Arizona and comprised of fifty parking spaces.~~

20 ~~D. The president of the senate is responsible for the following:~~

21 ~~1. The allocation of space, operation, alteration, renovation and~~
22 ~~control of the senate wing of the state capitol building.~~

23 ~~2. The allocation of space and control of the parking lot area~~
24 ~~adjacent to the senate wing and the southwest portion of the parking lot~~
25 ~~area of the Wesley Bolin memorial AND CHARLIE KIRK FREEDOM Plaza east of~~
26 ~~the state capitol building and comprised of COMPRISING one hundred twenty~~
27 ~~parking spaces.~~

28 ~~E. The joint legislative budget committee is responsible for the~~
29 ~~allocation of space, operation, alteration, renovation and control of the~~
30 ~~building located at 1716 West Adams street in Phoenix.~~

31 ~~F. The director of the department of administration is responsible~~
32 ~~for the maintenance of the entire state capitol building.~~

33 ~~G. For the purposes of this section, "control" includes security~~
34 ~~services.>>~~

35 ~~<<Sec. 3. Section 41-1363, Arizona Revised Statutes, is amended to~~
36 ~~read:~~

37 ~~41-1363. Monuments and memorials within governmental mall;~~
38 ~~legislative authorization; approval; procedure~~

39 ~~A. Notwithstanding section 34-225 or any other law, a monument or~~
40 ~~memorial recognizing or honoring a person, group, entity or event shall be~~
41 ~~located in the governmental mall only if a prior legislative act~~
42 ~~authorizes the monument or memorial.~~

43 ~~B. After legislative authorization, a monument or memorial may be~~
44 ~~established by the following procedures:~~

45 ~~1. The proponents shall submit a concept to the legislative council~~
46 ~~for the design, dimensions and location of the monument or memorial.~~

~~2. The legislative council shall review the concept and determine the most appropriate location that highlights the monument or memorial and preserves the integrity of the governmental mall.~~

~~3. After recommendations from the historical advisory commission regarding the historical integrity of the monument or memorial and after any necessary negotiations with the proponents, the legislative council shall approve the final design, dimensions, location and maintenance requirements of the monument or memorial, the minimum dollar amount required for deposit in the state monument and memorial repair fund established by section 41-1365 and any statement, declaration, writing or inscription that will be imprinted or stamped on the monument or memorial.~~

~~4. Before construction of the monument or memorial begins, the proponents shall enter into a contract with the legislative council specifying the conditions of the design, dimensions and location of the monument or memorial, a list of the artists, contractors and subcontractors that will be employed, the minimum dollar amount required for deposit in the state monument and memorial repair fund established by section 41-1365 and a verification that all employees for the project are insured and that this state is indemnified against any liability in regard to the construction.~~

~~5. An approved monument or memorial shall be completed and dedicated to this state within two years after the effective date of the legislative act authorizing the monument or memorial.~~

~~C. Except as otherwise provided in this section or section 41-1365, all fundraising and the establishment and administration of a fund for deposit of monies and contracts for artistic design and construction of the monument or memorial are the sole responsibility of the proponents.~~

~~D. If the completed monument or memorial deviates from the final design or dimension that was approved by the legislative council or any statement, declaration, writing or inscription that is imprinted or stamped on the monument or memorial deviates from that which was approved by the legislative council, the proponents are responsible for any costs incurred to conform the monument or memorial to the approved form.~~

~~E. The proponents shall collect an amount equal to at least ten percent of the artistic design and construction costs of the monument or memorial or the amount approved by the legislative council as provided in subsection B of this section. The legislative council shall deposit these monies in the state monument and memorial repair fund established by section 41-1365 for the maintenance, repair, reconditioning or relocation of that monument or memorial. The monies must be deposited in the fund before the beginning of construction of the monument or memorial.~~

~~F. The legislative council may relocate monuments or memorials that are located in the governmental mall.~~

~~G. This section does not apply to monuments or memorials in which a political subdivision has a contractual interest and that are located in the governmental mall but that are outside THE Wesley Bolin AND CHARLIE KIRK FREEDOM Plaza.>>~~

1 ~~<<Sec. 4. Section 41-1862, Arizona Revised Statutes, is amended to~~
2 ~~read:~~
3 ~~41-1862. Arizona fallen firefighter memorial committee;~~
4 ~~powers and duties; subcommittee~~
5 ~~A. The Arizona fallen firefighter memorial committee shall:~~
6 ~~1. Establish an acceptable set of standards for persons to be~~
7 ~~memorialized on the Arizona fallen firefighter memorial that is located in~~
8 ~~THE Wesley Bolin AND CHARLIE KIRK FREEDOM Plaza.~~
9 ~~2. Determine those persons who are eligible to be memorialized.~~
10 ~~3. Plan and provide for additions to and maintenance of the Arizona~~
11 ~~fallen firefighter memorial on an annual basis.~~
12 ~~4. Solicit private monetary donations or public monies from~~
13 ~~municipalities for deposit in the Arizona fallen firefighter memorial~~
14 ~~fund.~~
15 ~~5. Conduct an annual fallen firefighter memorial service.~~
16 ~~6. Determine those persons who are eligible for the tuition waiver~~
17 ~~scholarship pursuant to section 15-1808 and report the determination to~~
18 ~~the governor's office and Arizona board of regents or to each community~~
19 ~~college district governing board, as applicable.~~
20 ~~B. The committee may establish a subcommittee that is appointed by~~
21 ~~the committee chairperson to receive applications from and recommend~~
22 ~~tuition waiver scholarships for persons who are eligible for the tuition~~
23 ~~waiver scholarship pursuant to section 15-1808. The subcommittee shall~~
24 ~~forward any recommendation for a tuition waiver scholarship to the~~
25 ~~committee for approval.~~
26 ~~C. The committee shall meet every January and May. The committee~~
27 ~~may conduct additional meetings in person or telephonically.>>~~
28 ~~<<Sec. 5. Wesley Bolin and Charlie Kirk Freedom Plaza~~
29 ~~The legislative council shall designate Wesley Bolin Plaza as the~~
30 ~~"Wesley Bolin and Charlie Kirk Freedom Plaza".>>~~
31 ~~<<Sec. 6. Charlie Kirk memorial; procedures; delayed repeat~~
32 ~~A. Pursuant to section 41-1363, subsection A, Arizona Revised~~
33 ~~Statutes, this act authorizes the legislative council to provide for the~~
34 ~~placement in the Wesley Bolin and Charlie Kirk Freedom Plaza of a memorial~~
35 ~~dedicated to the commemoration of Charlie Kirk.~~
36 ~~B. The procedures prescribed in section 41-1363, Arizona Revised~~
37 ~~Statutes, apply to the establishment of the memorial.~~
38 ~~C. Public monies are not authorized for the costs of the memorial.~~
39 ~~All fundraising and contracts for artistic design and construction of the~~
40 ~~memorial are the sole responsibility of the proponents. This state may~~
41 ~~not facilitate fundraising or establish a state fund for the deposit of~~
42 ~~the monies.~~
43 ~~D. This section is repealed from and after September 30, 2029.>>~~

1 Section 1. Don Bolles memorial; procedures; delayed repeal

2 A. Pursuant to section 41-1363, subsection A, Arizona Revised
3 Statutes, this act authorizes the legislative council to provide for the
4 placement in the Wesley Bolin [~~and Charlie Kirk Freedom~~] Plaza of a
5 memorial dedicated to the commemoration of Don Bolles.

6 B. The procedures prescribed in section 41-1363, Arizona Revised
7 Statutes, apply to the establishment of the memorial.

8 C. Public monies are not authorized for the costs of the memorial.
9 All fundraising and contracts for artistic design and construction of the
10 memorial are the sole responsibility of the proponents. This state may
11 not facilitate fundraising or establish a state fund for the deposit of
12 the monies.

13 D. This section is repealed from and after September 30, 2029.

14 Sec. 2. Legislative findings

15 The legislature finds that[~~:-~~

16 ~~1. The memorial authorized by section 6 of this act is in~~
17 ~~recognition of Charles James Kirk, a well-respected civil rights leader~~
18 ~~and the founder of Turning Point USA, who was killed by an assassin's~~
19 ~~bullet while exercising his first amendment rights to free speech and~~
20 ~~peaceful assembly, as well as advocating for free, open and civil debate.~~

21 ~~2.]~~ the memorial authorized by [~~section 7 of~~] this act is in
22 recognition of Don Bolles, a well-respected Arizona reporter, who was
23 killed in a car bombing nearly fifty years ago in connection with his
24 investigative work.

25 Enroll and engross to conform

26 Amend title to conform

AARON MÁRQUEZ

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